

The Board Of Trustees Of The Port Of Bombay (Procedure At Board Meeting) Rules, 1975

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The Board Of Trustees Of The Port Of Bombay (Procedure At Board Meeting) Rules, 1975

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The Board Of Trustees Of The Port Of Bombay (Procedure At Board Meeting) Rules, 1975

Rule THE-BOARD-OF-TRUSTEES-OF-THE-PORT-OF-BOMBAY-PROCEDURE-AT-BOARD-MEETING-RULES-1975 of 1975

Published on 1 February 1975

Commenced on 1 February 1975

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The Board Of Trustees Of The Port Of Bombay (Procedure At Board Meeting) Rules, 1975

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(i), dated 1st February, 1975. 1943.

G.S.R. 27(E), dated 1st February, 1975. - Whereas the draft of the Board of Trustees of the Port of Bombay (Procedure at Board Meetings) Rules, 1974 was published as required by sub-section (2) of Section 122 of the Major Port Trusts Act, 1963 (38 of 1963) at pages 2101-2104 of the Gazette of India Extraordinary, Part 11, Section 3, sub-section (i), dated the 6th November, 1974, under the notification of the Government of India in the Ministry of Shipping and Transport (Transport Wing) No. G.S.R. 451(E), dated the 6th November, 1974, inviting objections and suggestions, from

all persons likely to be affected thereby till the expiry of a period of forty-five days from the date of publication of the said notification in the Official Gazette;

And whereas the said Gazette was made available to the public on the 11th November, 1974;

And whereas no objections and suggestions have been received from the public;

Now, therefore, in exercise of the powers conferred by sub-section (1) of Section 122 of the said Act, the Central Government hereby makes the following rules, namely :-

1.

Short title and application.

(1)

These rules may be called the Board of Trustees of the Port of Bombay (Procedure at Board Meetings) Rules, 1975.

(2)

They shall, subject to the provisions of Section 16 of the Act, apply to the business transacted at the meetings of the Board of Trustees of the Port of Bombay.

[2. Frequency of meetings of Board and place of meetings thereof, etc. - (1) A meeting of the Board, other than a special meeting referred to in rule 3, shall be held at least once in every month.

(2)

The Board shall, from time to time, determine the date and time of its meeting :

Provided that where the Board is unable to do so for any reason, the Chairman may do so for reasons to be recorded in writing.

(3)

A meeting of the Board shall be held in the Board's room, in the Bombay Port Administrative Offices Building, at Bombay.]

[Substituted by G.S.R. 925(E), dated 16th December, 1976.]

3.

Calling of special meetings.

- The Chairman or in his absence Deputy Chairman if appointed may, whenever he thinks fit, and shall upon the written request of not less than three Trustees, call a special meeting.

4.

Circulation of agenda, etc.

- Agenda and notes or memorandum thereon, if any, for any meeting of the Board shall be circulated to the Trustees at least three days before the date of the meeting.

Provided that in the case of a special meeting, such Agenda and notes or memoranda thereon shall be circulated at least one day before the date of the meeting.

5.

Discussion of items not included in the agenda.

- The Chairman or in his absence Deputy Chairman, if appointed may, at his discretion, include for discussion at any of the meetings of the Board, including a special meeting, any item not included in the agenda if the same is, in his opinion, of sufficient importance or urgency or both and cannot be held over for the consideration of the Board at any subsequent meeting.

6.

Poll.

- If a poll is demanded on any question, the names of the Trustees voting and the nature of their votes shall be recorded by the President of the meeting.

7.

Minutes of the meeting.

(1)

Minutes of the proceedings at each meeting of the Board shall be recorded in a book to be provided by the Board for this purpose, which shall be signed as soon as practicable by the president of such meeting and shall be open to inspection by any Trustee during office hours.

(2)

Minutes of the proceedings excepting such portion thereof as the Chairman or, in his absence Deputy Chairman, if

appointed, may direct in any particular case, shall also be open to the inspection of the public at the office of the Board during office hours.

(3)

The names of the Trustees present at each meeting shall be recorded in the minutes book.

Explanation. - For the purposes of this rule and rule 8, the expression "President" shall mean the Chairman or, in his absence the Deputy Chairman, if appointed, and in the absence of both, any person chosen by the Trustees present from among themselves.

[8. Adjournment of meetings. - The President of a meeting may, with the consent of the Trustees present in the meeting, adjourn it to a later date, which date shall either be announced at the meeting in which case intimation would be sent to the Trustees absent at the meeting at least three days in advance, or communicated to the Trustees at least three days before the date of the meeting.]

[Substituted by G.S.R. 925(E), dated 16th December, 1976.]

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